

2.

CASE #	CASE NAME	HEARING NAME
CVRI2306811	MALCOLM vs SANTILLAN	MOTION TO VACATE DISMISSAL OF COMPLAINT

Tentative Ruling:

The motion is denied. Moreover, if the parties pursuant to their settlement agreement stipulated that the court retain jurisdiction over the parties to enforce the settlement pursuant to Code of Civil Procedure section 664.6, as claimed by the moving party, the dismissal does not affect moving party's ability to seek enforcement. Accordingly, there is no valid reason to vacate the dismissal.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2404633	DAVALOS vs WASTE MANAGEMENT COLLECTION AND RECYCLING, INC.	MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE SUMMARY ADJUDICATION

Tentative Ruling:

Defendant moves for summary judgment, or in the alternative, summary adjudication on the grounds there are no triable issues of material facts as to all 9 causes of action and Plaintiff's claim for punitive damages.

Plaintiff has not filed an opposition. Trial is currently set for September 4, 2026.

From commencement to conclusion, the party moving for summary judgment bears the burden of persuasion. (*Aguilar v. Atlantic Richfield Company* (2001) 25 Cal.4th 826, 855.) A defendant can meet the initial burden by showing that one or more elements of the causes of action cannot be established, or that there is a complete defense. (Code Civ. Proc., § 437c, subd. (p)(2).) To demonstrate that a cause of action cannot be established, the defendant must either negate an essential element of the plaintiff's cause of action or show that the plaintiff lacks evidence. (*Chavez v. Glock, Inc.* (2012) 207 Cal.App.4th 1283, 1301.) To negate an element, the defendant must establish that plaintiff's claim fails as a matter of law. (*Erikkson v. Nunnick* (2011) 191 Cal.App.4th 826, 849.) To demonstrate that the plaintiff lacks evidence, the defendant must show that the plaintiff does not possess and cannot reasonably obtain needed evidence. (*Aguilar, supra*, 25 Cal.4th at 855.) A defendant may not simply point to an absence of evidence but must show that the plaintiff cannot reasonably obtain such evidence. (*Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891.)

A motion for summary judgment should be granted if no triable issue exists as to any material fact and the moving party is entitled to a judgment as a matter of law. (*Kahn v.*

East Side Union High School Dist. (2003) 31 Cal.4th 990, 1002-1003.) Once the movant's burden has been met, the burden shifts to the opposing party to make a prima facie showing of the existence of a triable issue of material fact. (*Aguilar, supra*, 25 Cal.4th at 850.) "Any doubts as to the propriety of granting the motion are resolved in favor of the party opposing the motion." (*American Airline v. Sheppard, Mullin, Richter & Hampton* (2002) 96 Cal.App.4th 1017, 1048.)

"Summary adjudication motions are procedurally identical to summary judgment motions." (*Serri v. Santa Clara Univ.* (2014) 226 Cal.App.4th 830, 859.) It is improper for the court to weigh the evidence or determine the credibility on a motion for summary judgment or adjudication. (*Binder v. Aetna Life Insurance Co.* (1999) 75 Cal.App.4th 832, 840.)

Defendant's memorandum of points and authorities frames the MSA by claims. Defendant's Notice of Motion frames the MSAs by issues. Thus, the analysis will accordingly be by the issues. (Cal. Rules of Court, rule 3.1350(b) [If summary adjudication is sought, the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts].)

a. Issues 1, 2, 3, 6 and 7 – Statute of Limitations and Merits of 1st (Improper Wage Statements) and 3rd (Failure to Pay Overtime Wages) Causes of Action

Labor Code section 510 provides that a non-exempt employee shall be paid at a rate of no less than 1.5 times the regular rate of pay for any work in excess of 8 hours in one workday and in excess of 40 hours in any workweek.

Labor Code section 226, subdivision (a) requires specific information on the wage statements. An employee is deemed to suffer injury if the employee cannot promptly and easily determine the following:

- (i) The amount of the gross wages or net wages paid to the employee during the pay period or any of the other information required to be provided on the itemized wage statement pursuant to items (2) to (4), inclusive, (6), and (9) of subdivision (a).
- (ii) Which deductions the employer made from gross wages to determine the net wages paid to the employee during the pay period. Nothing in this subdivision alters the ability of the employer to aggregate deductions consistent with the requirements of item (4) of subdivision (a)
- (iii) The name and address of the employer and, if the employer is a farm labor contractor, as defined in subdivision (b) of Section 1682, the name and address of the legal entity that secured the services of the employer during the pay period.
- (iv) The name of the employee and only the last four digits of his or her social security number or an employee identification number other than a social security number.

(Labor Code §226(e)(2)(B).)

Defendant contends the overtime claim is subject to the three-year statute of limitations, and because the wage statement claim is derivative of the overtime claim, it is also time-barred.

Here, the FAC was filed on February 11, 2025 and alleges, “dating back 3 years from the filing of this First Amended Complaint, Plaintiff was made to work overtime on numerous occasions well over 14 hours a shift and was directed by the Defendant to not clock in those overtime hours, clearly indicating intent on the part of Defendant to evade paying Plaintiff his overtime.” (FAC ¶37.)

As to the wage statement, the FAC alleges, “Dating back 3 years from the filing of this First Amended Complaint, Plaintiff claims that he was intentionally not provided with accurate wage statements by Defendant, pursuant to Labor Code section 226(a), because it was Defendant’s intent to avoid paying Plaintiff the correct wages that he was legally entitled to. Specifically, because Defendant incorrectly paid Plaintiff’s wages (on hourly basis), failed to indicate all hours actually worked by Plaintiff (including the overtime hours worked over 14 hours),...” (FAC ¶27.)

In a motion for summary judgment, the complaint limits the issues. (*Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1247; *Zimmerman Rosenfield, Gersh & Leeds LLP v. Larson* (2005) 131 Cal.App.4th 1466, 1489.) Defendant presents evidence that the failure to pay overtime wages and inaccurate wage statements occurred prior to the “3 years from the filing of [the] First Amended Complaint.”

At deposition, Plaintiff admitted that the dates on which he claims to have not received overtime occurred in 2019. (UF #55, 57.) Plaintiff further admitted that during his termination meeting on August 18, 2022, he signed his termination letter, which confirmed he was given his final paycheck that included payment for four hours of work for “show up time” on August 18, 2022, 24 hours of unused sick time, 24 hours of unused personal time, and 64.22 hours of unused vacation time. (UF #42.) By signing his termination letter, Plaintiff certified that Defendant “does not owe [him] any other amounts.” (UF #43.) Moreover, Plaintiff admitted in this termination meeting that he did not advise Torres that Plaintiff was owed any additional wages. (UF #44.)

Based on the foregoing, Defendant met its initial burden of persuasion of showing the 1st and 3rd causes of action are time-barred under Code of Civil Procedure section 437c, subdivision (b)(3). The burden now shifts to Plaintiff. Because Plaintiff did not present any evidence in support to rebut Defendant’s evidence, Plaintiff failed to meet his burden in presenting a triable issue of material fact. (See Code Civ. Proc., § 437c, subd. (b)(3).)

- b. 2nd Cause of Action: Failure to Pay Wages Upon Termination of Employment*
- There are no triable issue of material fact because (Issue 4) this claim is derivative of the 3rd cause of action for failure to pay overtime and (Issue 5) Plaintiff cannot prove that any alleged failure to pay wages was willful, knowing and intentional

Labor Code sections 201 and 202 provide that when an employer discharges an employee, all wages earned and unpaid are immediately due and payable.

As discussed above, Plaintiff confirmed he was given his final paycheck, certified that Defendant “does not owe [him] any other amounts,” and admitted at his termination meeting that he did not advise Torres that Plaintiff was owed any additional wages. (UF #42-44.)

Defendant met its initial burden of persuasion as to the 2nd cause of action under Code of Civil Procedure section 437c, subdivision (b)(3). The burden now shifts to Plaintiff. Because Plaintiff did not present any evidence in support to rebut Defendant’s evidence, Plaintiff failed to meet his burden in presenting a triable issue of material fact. (See Code Civ. Proc., § 437c, subd. (b)(3).)

- c. 4th Cause of Action: Disability Discrimination – There are no triable issues of material fact because (Issue 8) Plaintiff cannot establish a prima facie case for this claim as there is no evidence of a causal connection between his disability and his request for modified duty and/or termination; and (Issue 9) because Defendant has articulated a legitimate, nondiscriminatory reason for Plaintiff’s termination and Plaintiff cannot produce substantial responsive evidence of pretext*

The elements of disability discrimination are that the plaintiff “(1) suffered from a disability, or was regarded as suffering from a disability; (2) could perform the essential duties of the job with or without reasonable accommodations, and (3) was subjected to an adverse employment action because of the disability or perceived disability.” (*Sandell v. Taylor-Listug, Inc.* (2010) 188 Cal.App.4th 297, 310.)

Here, Plaintiff suffered from a work-related knee injury he sustained on August 9, 2022 and reported this injury the next day to Route Manager Jonathan Ortuno. (UF #9, 23-24.) Plaintiff was taken to the clinic on August 10, 2022 and returned to work the same day. (UF #25-26.) Plaintiff was placed on modified duty consistent with his doctor’s instruction and worked modified duty for the remainder of the shift. (UF #26-27.) On August 12, 2022, Plaintiff was advised that his employment was being suspended effective immediately pending investigation into his failure to immediately report his August 9, 2022 injury. (UF #30.) After the investigation, Torres terminated Plaintiff’s employment on August 18, 2022. (UF #31-41.)

Although Defendant disputes a causal link between any adverse employment action with the protected activity, “[c]ircumstantial evidence such as proximity in time between protected activity and alleged retaliation may establish a causal link.” (*Morgan v.*

Regents of Univ. of Cal. (2000) 88 Cal.App.4th 52, 69.) Even if a long period has elapsed between the protected activity and the adverse employment action, “a causal connection between them would still be established so long as the [defendant] engaged in a pattern of conduct consistent with a retaliatory intent.” Here, Plaintiff was terminated 8 days after he reported his medical disability and requested modified work duties thus establishing a causal link under *Morgan*.

Pretext

If a prima facie case exists for disability discrimination, the burden shifts to the employer to provide evidence that there was a legitimate, non-retaliatory reason for the adverse employment action. (*Morgan, supra*, 88 Cal.App.4th at 68.) If the employer produces evidence showing a legitimate reason for the adverse employment action, the burden shifts back to the employee to provide “substantive responsive evidence” that the employer’s proffered reasons were untrue or pretextual. (*Loggins v. Kaiser Permanent International* (2007) 151 Cal.App.4th 1102, 1108-09.)

Defendant argues Plaintiff was terminated for a reasonable and lawful reason: violating the terms of the Collecting Bargaining Agreement (“CBA”) governing Plaintiff’s employment. Here, Plaintiff acknowledged receipt of Defendant’s Employee Handbook, which contains Defendant’s safety rules and policies. (UF #5, 7-8, 12.) Plaintiff was a member of a union during his employment and some of the terms and conditions of his employment were governed by the CBA. (UF #9, 11.) One of Defendant’s safety rules and policies requires employees to report “all workplace injuries and illnesses as soon as reasonably possible after becoming aware of the injury or illness. If an employee is at work when they become aware of an injury or illness, absent special circumstances, the employee is required to report a work injury or illness before continuing to engage in any work. Employees should not clock out before reporting any known injury or illness.” (UF #12-15.) The CBA provides that four infractions in a twelve-month period “shall lead to discipline up to and including discharge.” (UF #16.) Plaintiff was terminated in August 2022 after he failed to report an injury in violation of Defendant’s Employee Handbook and CBA because Plaintiff’s failure to report his August 9, 2022 injury until August 10, 2022 was Plaintiff’s fourth infraction in an 8-month period. (UF #19-41.) Plaintiff’s union initially filed a grievance on his behalf to investigate the merits of Plaintiff’s termination but ultimately determined that the grievance lacked merit. (UF #46-47.) The union informed Plaintiff in a letter that Defendant provided “substantial evidence” that Plaintiff violated the Employee Handbook and CBA by failing to report an accident. (UF #48.)

Based on the foregoing, Defendant met its initial burden of persuasion as to the 4th cause of action under Code of Civil Procedure section 437c, subdivision (b)(3). The burden now shifts to Plaintiff. Because Plaintiff did not present any evidence in support to rebut Defendant’s evidence, Plaintiff failed to meet his burden in presenting a triable issue of material fact. (See Code Civ. Proc., § 437c, subd. (b)(3).)

- d. 5th Cause of Action: Failure to Engage in the Interactive Process – There is no triable issue of material fact because (Issue 10) Plaintiff was reasonably accommodated and (Issue 11) Plaintiff testified that he discussed his doctor’s note with his supervisor*

An employer has an obligation to engage in a “timely, good faith interactive process...in response to a request for reasonable accommodation by an employee or applicant with a known physical or mental disability of known medical condition.” (Gov. Code § 12940, subd. (n).) “The purpose of the interactive process is to determine what accommodation is required.” (*A.N. v. Albertsons, LLC* (2009) 178 Cal.App.4th 455, 464.) The more restrictions the employee requires, the fewer jobs may be available. (*Id.*) The employee has the burden of proving that there is a reasonable accommodation available before an employer will be held liable. (*Nadaf-Rahrov v. Neiman Marcus Group, Inc.* (2008) 166 Cal.App.4th 952, 984 “[T]he availability of a reasonable accommodation is a prerequisite to liability under section 12940(n)”).)

The evidence establishes Plaintiff suffered a disability for which he requested accommodation. (UF #9, 23-24.) Plaintiff was placed on modified duty consistent with his doctor’s instruction and worked modified duty for the remainder of the shift. (UF #26.) Plaintiff testified that he discussed his doctor’s note with Route Manager Tony Morales (UF #27.) Plaintiff’s time records show that he clocked out from work on the day of his injury at 6:13pm, consistent with his typical clock-out time and his pay records show he was paid for all hours worked that day. (UF #28.)

Defendant met its initial burden of persuasion as to the 5th cause of action under Code of Civil Procedure section 437c, subdivision (b)(3). The burden now shifts to Plaintiff. Because Plaintiff did not present any evidence in support to rebut Defendant’s evidence, Plaintiff failed to meet his burden in presenting a triable issue of material fact. (See Code Civ. Proc., § 437c, subd. (b)(3).)

- e. 6th Cause of Action: Failure to Accommodate - (Issue 12) There is no triable issue of material fact for this claim because Plaintiff was reasonably accommodated with either modified duty work or unpaid leave of absence*

The elements of a failure-to-accommodate claim are: (1) the plaintiff has a disability under the FEHA; (2) the plaintiff is qualified to perform the essential functions of the position; and (3) the employer failed to reasonably accommodate the plaintiff’s disability. (*Lui v. City and County of San Francisco* (2012) 211 Cal.App.4th 962, 970.)

Based on the same evidence presented for the 5th cause of action above, Defendant met its initial burden of persuasion as to the 6th cause of action under Code of Civil Procedure section 437c, subdivision (b)(3). The burden now shifts to Plaintiff. Because Plaintiff did not present any evidence in support to rebut Defendant’s evidence, Plaintiff failed to meet his burden in presenting a triable issue of material fact. (See Code Civ. Proc., § 437c, subd. (b)(3).)

- f. 7th Cause of Action: Retaliation – There are no triable issues of material fact because (Issue 13) Plaintiff cannot establish a prima facie case of retaliation as no evidence of causation exists; and (Issue 14) Defendant articulated a legitimate, nondiscriminatory reason for Plaintiff's termination, and Plaintiff cannot produce substantial responsive evidence of pretext*

The FEHA makes it unlawful for an employer to retaliate against an employee who reports or otherwise opposes prohibited discrimination or harassment. (Gov. Code, § 12940, subd. (h).) To establish a prima facie case of retaliation, a plaintiff must show: (1) he engaged in a protected activity; (2) the employer subjected plaintiff to an adverse employment action; and (3) a causal link exists between the protected activity and the employer's action. (*Yanowitz, supra*, 36 Cal.4th at 1042.) If the employee successfully establishes these elements and thereby shows a prima facie case exists, the burden shifts to the employer to provide evidence that there was a legitimate, non-retaliatory reason for the adverse employment action. (*Morgan v. Regents of University of California* (2000) 88 Cal.App.4th 52, 68.) If the employer produces evidence showing a legitimate reason for the adverse employment action, the burden shifts back to the employee to provide "substantive responsive evidence" that the employer's proffered reasons were untrue or pretextual. (*Loggins v. Kaiser Permanente International* (2007) 151 Cal.App.4th 1102, 1108-09.)

The evidence establishes Plaintiff suffered a disability for which he requested accommodation. (UF #9, 23-24.) Plaintiff was terminated 8 days after he reported his medical disability and requested accommodation. (UF #30-41.) The proximity in time between Plaintiff's termination and his request for accommodation establishes a causal link. (*Morgan, supra*, 88 Cal.App.4th at 69.)

However, as discussed above under the pretext discussion for disability discrimination, Defendant provides substantial evidence that Plaintiff was terminated for violating the terms of the CBA and Employee Handbook by accumulating 4 infractions within 8 months. (UF #5, 7-9, 11-12, 16, 19-41, 46-48.)

Accordingly, Defendant met its initial burden of persuasion as to the 7th cause of action under Code of Civil Procedure section 437c, subdivision (b)(3). Because Plaintiff did not present any evidence in support to rebut Defendant's evidence, Plaintiff failed to meet his burden in presenting a triable issue of material fact. (See Code Civ. Proc., § 437c, subd. (b)(3).)

- g. 8th Cause of Action: Failure to Prevent Retaliation or Discrimination – There are no triable issues of material fact because (Issues 16) this claim is derivative of the 4th and 7th causes of action and (Issue 17) Defendant had reasonable policies and practices in place to prevent discrimination*

Because the 4th and 7th causes of action are subject to summary adjudication, the 8th cause of action is also subject to summary adjudication because this claim is derivative

of the retaliation and discrimination claims. (*Okorie v. Los Angeles Unified School District* (2017) 14 Cal.App.5th 574, 597.)

- h. 9th Cause of Action: Unlawful Business Practices – There are no triable issues of material fact because (Issue 19) this claim is derivative of the other causes of action alleged in the FAC*

Because the 1st through 8th cause of actions are subject to summary adjudication, the 9th cause of action is also subject to summary adjudication because this claim is derivative of the first 8 claims. (*Okorie v. Los Angeles Unified School District* (2017) 14 Cal.App.5th 574, 597.)

- i. Punitive Damages – There are no triable issues because (Issue 20) there is no evidence that any alleged decisionmaker was an officer, director, or managing agent; and (Issue 21) there is no evidence any decisionmaker acted with fraud, oppression, or malice, or authorized or ratified the same*

Under Civil Code section 3294, punitive damages can be awarded if a plaintiff sufficiently proves the defendant engaged in conduct with “oppression, fraud or malice.” “Malice” is defined by statute as conduct “intended by the defendant to cause injury to plaintiff, or despicable conduct that is carried on by the defendant with a willful and conscious disregard for the rights or safety of others.” (Civ. Code, § 3294, subd. (c)(1).) “Oppression” means despicable conduct that subjects a person to cruel and unusual hardship to conscious disregard of that person’s rights.” (*Id.* at (c)(2).) “Despicable conduct” is defined as “conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people.” (CACI 3940; *Tomaselli v. Transamerica Ins. Co.* (1994) 25 Cal.App.4th 1269, 1287.)

To impose punitive damages against a corporate employer, the plaintiff must establish one of the following: (i) the employer had advance knowledge of the unfitness of the employee and employed him/her with a conscious disregard of the rights or safety of others, (ii) authorized or ratified the wrongful conduct, or (iii) was personally guilty of oppression, fraud or malice. (Civ. Code § 3294, subd. (b).) In actions against a corporate employer, these employer’s actions must be on the part of an officer, director, or managing agent. (*Ibid.*)

A managing agent is more than a mere supervisory employee; he/she is “someone who exercise[s] substantial discretionary authority over decisions that ultimately determine corporate policy.” (*White v. Ultramar* (1999) 21 Cal.4th 563, 573; see also *Crux v. Homebase* (2000) 83 Cal.App.4th 160, 167-168.)

The decision regarding Plaintiff’s termination was made by Defendant’s Area Director Steve Kanow (“Kanow”) and Area HR Director Tracie Vargas (“Vargas”), who have oversight responsibilities over Defendant and its employees, including Plaintiff. (UF #35, 37, 60-61.) Kanow and Vargas reviewed the information uncovered in the course of the

investigation of Plaintiff's August 9, 2022 injuries and determined that Plaintiff failed to immediately report his injury pursuant to the Employee Handbook. (UF #38.) Because this was Plaintiff's fourth infraction in an 8-month period in violation of the CBA, Kanow and Vargas determined Plaintiff should be terminated. (UF #39.) Neither Kanow nor Vargas has ever been an officer, corporate director, or managing agent for Defendant. (UF #58-59.) Accordingly, the decisionmakers did not act with fraud, oppression, or malice.

Defendant satisfied its initial burden under Code of Civil Procedure section 437c, subdivision (b)(3), shifting the burden to Plaintiff. Plaintiff failed to present evidence to rebut Defendant's evidence. Accordingly, Plaintiff failed to meet his burden in presenting a triable issue of material fact. (See Code Civ. Proc., § 437c, subd. (b)(3).)

The unopposed motion for summary judgment is granted.

A hearing re: proposed judgment is set for September 16, 2026, at 8:30 a.m. Moving party is ordered to submit to the court and serve on all parties a proposed final judgment by no later than September 1, 2026. Any objection to the proposed judgment must be submitted to the court and served on all parties by no later than September 11, 2026.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2504234	HARTWELL vs DC LOGISTICS, LLC	MOTION TO BE RELIEVED AS COUNSEL FOR DC LOGISTICS, LLC

Tentative Ruling:

The motion is taken off calendar as this Court does not currently have jurisdiction to grant relief due to the arbitration stay.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2507156	COOPER vs COUNTY OF RIVERSIDE	MOTION TO COMPEL PLAINTIFF'S FURTHER RESPONSE TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE

Tentative Ruling:

Where responses to document requests have been timely served but are deemed deficient by the requesting party (e.g., the response is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general), that party may